



OFFICE OF THE GOVERNOR

Governor's Office of Information Technology

RULES ESTABLISHING TECHNOLOGY ACCESSIBILITY STANDARDS

8 CCR 1501-11

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

11.1 Authority

The Chief Information Officer in the Office of Information Technology is authorized by the provisions of section 24-37.5-106 (4), C.R.S. and section 24-85-103, C.R.S. to establish rules regarding accessibility standards for an individual with a disability for information technology systems employed by state agencies.

The rules are intended to be consistent with the requirements of the State Administrative Procedures Act, section 24-4-101 et seq., C.R.S. (the "APA").

11.2 Scope and Purpose

- A. The purpose of these rules is to define the accessibility standards and compliance parameters for individuals with a disability for information technology systems. The reason for the rules is to improve the accessibility and usability of government information technology products and services in Colorado.
- B. The rules recognize that technology and accessibility standards are evolving and, given the diversity of needs of residents of our state, there is no standard that can guarantee universal access. Therefore, to make information technology accessible, these rules also acknowledge that reasonable accommodations or modifications are an important component of compliance.
- C. The rules apply to all information and communication technology (ICT) in active use, whether public-facing or internal-facing, that the public entity provides or makes available directly or through contractual, licensing, or other arrangements.
- D. Compliance with these rules does not necessarily ensure compliance with other laws, rules, and regulations.

11.3 Applicability

Section 24-34-802(1)(c), C.R.S. specifies that the accessibility standards for individuals with a disability as established by these rules apply to public entities as defined in section 24-34-301(18), C.R.S. Public entities must fully comply with these standards established pursuant to section 24-85-103(2.5), C.R.S.

The rules apply to all ICT that is in active use on or after July 1, 2024 and any ICT that is newly created, developed, acquired, altered, updated, or purchased on or after July 1, 2024. The rules also apply when an accessible version of ICT not currently in active use is requested by an individual with a disability.

These rules do not require a public entity to take any action that is otherwise exempted under these rules.

Nothing in these rules shall be construed to create new obligations beyond those which already exist under the Individuals with Disabilities Education Act, the Exceptional Children's Education Act, Section 504 of the Rehabilitation Act, or any other applicable state or federal law related to the delivery of educational programming, extracurricular activities, and related services directly to students in public schools serving students at Kindergarten through grade 12. However, such entities retain an obligation to comply with these rules for all other purposes not involving direct services to students.

11.4 Definitions

Accessible or accessibility: has the same meaning as defined in section 24-85-102(1.5), C.R.S., or as superseded by a future statute, which is perceivable, operable, and understandable digital content that reasonably enables an individual with a disability to access the same information, engage in the same interactions, and enjoy the same services offered to other individuals, with the same privacy, independence, and ease of use as exists for individuals without a disability.

Accessibility standards for individuals with a disability: as used in section 24-34-802(1)(c), C.R.S. means these rules, 8 CCR 1501-11 Rules Establishing Technology Accessibility Standards.

Active use: For public-facing ICT, active use means ICT that is currently used by members of the public as a primary means to apply for, gain access to, or participate in a public entity's services, programs, or activities. For internal-facing ICT, active use means ICT currently used by employees to perform their job duties. ICT in active use includes the authorized, official version or versions. ICT in active use does not include previous versions that may still be available, archived content, archivist materials, working products, deliberative materials, or drafts.

Applicable and achievable: In the context of technical specifications, standards, or outcomes, applicable and achievable means all technical specifications, standards, or outcomes which are assessable and/or whose elements, artifacts, or functionality are present in an ICT asset.

Archived content: ICT that is: (1) retained exclusively for reference, research, or recordkeeping; (2) not altered or updated after the date of archiving; and (3) is organized, stored, or marked in a manner that clearly identifies the ICT as being archived.

Archivist materials: Historical or legacy digital content that: (1) is preserved or retained solely for its cultural, educational, or historic value and is not required for the operation of or access to any governmental entity's services, programs, or activities and (2) either (i) was converted to a digital format before July 1, 2024; (ii) is a reproduction of a physical record, such as a photograph, manuscript, or other non-digital artifact, that has been digitized but is not intended for interactive use; or (iii) has been transferred to the Colorado State Archives by a governmental entity or office in the State of Colorado or otherwise designated for permanent retention by the State Archivist.

Closed functionality: Characteristics that limit functionality or prevent a user from attaching or installing assistive technology. Examples of ICT with closed functionality are self-service machines, information kiosks, set-top boxes, fax machines, calculators, interactive whiteboards, ebook readers, and computers that are locked down so that users may not adjust settings due to a policy such as Desktop Core Configuration.

Conforming alternate version: An accessible version of content or functionality provided in a different format as set forth in section 11.8.

Conventional electronic documents: ICT that is a static, digital file created, stored, or accessed using computer systems and designed for offline use. Examples of conventional electronic document file types and categories include: portable document format (PDF), word processor file formats (DOC/DOCX, RTF, WPD), presentation file formats (PPT/PPTX), spreadsheet file formats (XLS/XLSX, CXV, ODS), computer-aided design files (CWG, DXF), geospatial files (KML/KMZ, SHP), and databases (MDB, SQL).

Digital Content: Any ICT created, shared, or accessed through digital platforms, including electronic documents, websites, mobile applications, and online services. Digital Content does not include ICT with closed functionality or hardware.

Direct threat: a significant risk to the health or safety of others that cannot be eliminated by a modification of policies, practices or procedures, or by the provision of auxiliary aids or services.

Fundamental alteration: a change in the essential nature of the public entity's program, service, or activity.

Hardware: a tangible device, piece of equipment, or physical component of ICT, such as telephones, computers, multifunction copy machines, and keyboards.

Information and communication technology (ICT): Information technology and other equipment, systems, technologies, or processes, for which the principal function is the creation, manipulation, storage, display, receipt, or transmission of electronic data and information, as well as any associated content. Examples of ICT include, but are not limited to: computers and peripheral equipment; information kiosks and transaction machines; telecommunications equipment; customer premises equipment; multifunction office machines; software; applications; web sites; videos; and, electronic documents. The term does not include any equipment that contains embedded information technology that is used as an integral part of the product, but the principal function of which is not the acquisition, storage, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information. However, if the embedded information technology has an externally available web or computer interface, that interface is considered ICT. For example, Heating, Ventilation, and Air Conditioning (HVAC) equipment such as thermostats or temperature control devices, and medical equipment where information technology is integral to its operation are not considered information technology.

Internal-facing ICT: ICT that is necessary to allow an employee of a public entity to perform their job duties for the public entity.

Public entity: has the same meaning as defined in section 24-34-301(18), C.R.S., or as superseded by a future statute, which is: (a) Any state or local government; or (b) Any department, agency, special district, or other instrumentality of a state or local government.

Public-facing ICT: ICT that is necessary to allow a person to apply for, gain access to, or participate in the public entity's programs, services, and activities.

Reasonable accommodation: as it pertains to internal-facing ICT, reasonable accommodation is a change or adjustment to a job or work environment that will enable a qualified individual with a disability to access internal-facing ICT.

Reasonable modification: as it pertains to public-facing ICT, reasonable modification is a change in policies, practices, or procedures that is necessary to enable an individual with a disability to access public-facing ICT in order to access the public entity's programs, services, and activities.

Section 508, Section 508 of the Rehabilitation Act: Unless a specific citation is provided, Section 508 refers to the ICT Standards and Guidelines (also known as "Standards and Guidelines"), under Section 508 of the Rehabilitation Act and Section 255 of the Communications Act, as issued on Jan. 18, 2017 and corrected on Jan. 22, 2018 by the U.S. Access Board and not including any later amendments or versions.

Single digital product: as used in section 24-34-802(2)(b), C.R.S. means ICT that share a common purpose, intended to support a single program or service, created by the same author, group, or organization, including:

- A. Electronic communications
- B. Digital documents like PDFs and graphics
- C. Mobile applications
- D. Desktop applications
- E. Websites
- F. Digital kiosks
- G. Input devices
- H. Digital video files
- I. Audio recordings

Technical standards: as used in these rules, technical standards refers to the following:

- A. For Digital Content, the applicable and achievable success criteria of the W3C WCAG 2.1 conformance levels A and AA, as published on Sep. 21, 2023, not including any later amendments or versions, hereby incorporated by reference and available from the Office of Information Technology during regular business hours or from the World Wide Web Consortium. Criteria or standards should be read, interpreted, and applied substituting references for “web” or “web content” with “software”, “application”, “document”, or other appropriate term.
- B. For ICT with closed functionality, such products must interoperate with assistive technology, provide documentation on accessibility features, and provide user control over accessibility features; and conform with all applicable and achievable success criteria of the W3C WCAG 2.1 conformance levels A and AA, as published on Sep. 21, 2023, not including any later amendments or versions, hereby incorporated by reference and available from the Office of Information Technology during regular business hours or from the World Wide Web Consortium.
- C. For hardware, all applicable and achievable requirements of the standards contained in Chapter 4 of the Information and Communication Technology (ICT) Standards and Guidelines under Section 508, including Standards 402, 404, 407, 408, 409, 410, and 411, as corrected on Jan. 22, 2018, not including any later amendments or versions, hereby incorporated by reference and available from the Office of Information Technology during regular business hours or from the U.S. Access Board.

Undue burden: as it pertains to public-facing ICT, refers to the standard as construed by C.R.S. § 24-34-601, *et seq.*, C.R.S. § 24-34-802, Title II of the Americans with Disabilities Act, and Section 508 of the Rehabilitation Act, and the related conforming and implementing regulations.

Undue hardship: as it pertains to internal-facing ICT, refers to the standard as construed by C.R.S. § 24-34-401, *et seq.* and Title I of the Americans with Disabilities Act and the related conforming and implementing regulations.

Web Content Accessibility Guidelines (WCAG): a single shared standard for web content accessibility that meets the needs of individuals, organizations, and governments internationally, as published by the World Wide Web Consortium (W3C). (<https://www.w3.org/WAI/standards-guidelines/wcag>)

11.5 Compliance Requirements

Each public entity shall make their ICT that is in active use accessible by meeting one of the following:

- A. Meeting the Technical Standards unless exempt under section 11.7 or 11.10;
- B. Utilizing a conforming alternate version in accordance with section 11.8 unless exempt under section 11.10;
- C. Providing reasonable modifications or accommodations, when requested, to remove accessibility barriers unless exempt under section 11.10. When providing reasonable modification or accommodations, a public entity cannot require an individual with a disability to pay to cover the cost of measures, such as providing auxiliary aids or barrier removal, that are required to provide that individual with nondiscriminatory treatment;
- D. Publishing an Accessibility Plan which shows evidence of the public entity's good faith progress towards removing accessibility barriers across its inventory of ICT in active use unless exempt under section 11.10. The Accessibility Plan must be published on the public entity's website. To demonstrate good faith, the Accessibility Plan must be updated annually with progress the public entity has made on advancing technology accessibility. The Accessibility Plan may include but is not limited to the following: (i) how the public entity is prioritizing ICT in active use with consideration of how the ICT will impact the public entity and its users, including aspects such as legal requirements, user impact, usage metrics, and importance of the program, service, or activity; (ii) the steps the public entity is taking to remove accessibility barriers in their ICT; (iii) timelines (if appropriate or available) to address inaccessible ICT; (iv) the availability of reasonable accommodations and modifications; and (v) procedures for regular testing and remediating ICT; or
- E. Procuring and providing reasonable accommodations or modifications, if needed, for the ICT that best meets the technical standards and also the public entity's business needs unless exempted by section 11.10. These could include but are not limited to considerations such as audience needs, capacity, reliability, interoperability, organizational needs, privacy, and security.

A public entity has complied with their obligations under this rule if they have: (i) met any single, or a combination of, the compliance options set forth in 11.5; and (ii) posted the Technology Accessibility Statement required under section 11.6.

11.6 Technology Accessibility Statement Requirement

- A. Each public entity shall develop and publicly post in a conspicuous place, like on the public entity's primary website or application, a technology accessibility statement.
- B. The technology accessibility statement shall include, at a minimum:
 - 1. A commitment to advancing technology accessibility in the public entity's ICT and the steps the public entity is taking to remove accessibility barriers to ICT.
 - 2. A commitment to a timely response to reports of inaccessible ICT or requests for a reasonable accommodation or modification.

3. A prominent notice informing individuals with disabilities on: (i) how to request reasonable accommodations or modifications; (ii) how to report inaccessible ICT; and (iii) any applicable existing grievance procedures that the public entity is required to maintain under other laws. The notice shall provide more than one contact method, which could include an accessible form to submit feedback, an email address, or a toll-free phone number (with TTY), to contact personnel knowledgeable about the accessibility of the ICT.

11.7 Exceptions

The exceptions in this section only apply in situations where a public entity intends to comply with this rule by meeting the Technical Standards under section 11.5.A; it does not apply when a public entity is meeting its compliance requirements under sections 11.5.B – E. This means that if a public entity seeks compliance with this rule by meeting the Technical Standards in section 11.5.A, any ICT covered by an exception need not meet those Technical Standards. The exceptions to the Technical Standards under section 11.5.A are as follows:

- A. *Content posted by a third party.* Content posted by a third party unless the third party is posting due to contractual, licensing, or other arrangements with the public entity.
- B. *Individualized,* password protected or otherwise secured conventional electronic documents. Conventional electronic documents that are: (1) about a specific individual, their property, or their account; and (2) password-protected or otherwise secured.
- C. *Preexisting social media posts.* A public entity's social media posts that were posted before July 1, 2024.
- D. *Preexisting conventional electronic documents.* A public entity's conventional electronic documents that:
 1. Were last updated and made available publicly or internally before July 1, 2024; and
 2. Are not currently used to apply for, gain access to, or participate in the public entity's services, programs, or activities; and
 3. Are not currently used by employees to perform their job duties.
- E. *Substantially equivalent access and ease of use.* An individual with a disability is not substantially hindered, with reasonable accommodations or modifications if needed, from accessing or engaging effectively in the same or substantially equivalent services, programs, and activities that the public entity offers through its ICT to those without disabilities, with substantially equivalent ease of use.
- F. *ICT with closed functionality.* Public entities are subject to the federal exemptions enumerated in 508 Chapter 2. Exceptions should be read, interpreted, and applied using "Colorado Standards for Technology Accessibility" in place of "Revised 508 Standards."

Even if an exception under this section 11.7 applies to a particular ICT, the public entity is only exempt from the Technical Standards set forth in section 11.5.A. The public entity remains obligated to make the ICT accessible by meeting one of the other compliance obligations under section 11.5, unless doing so would constitute an undue hardship, undue burden, fundamental alteration, or direct threat pursuant to section 11.10.

11.8 Conforming Alternate Versions

A public entity may use conforming alternate versions of ICT to comply with these rules only where it is not possible to make the ICT directly accessible due to technical or legal limitations.

- A. Alternate versions must:
 - 1. Provide all of the same information and functionality in the same human language;
 - 2. Be as up-to-date as the non-conforming version;
 - 3. Be as readily available as the non-conforming version; and
 - 4. Conform to the technical standards or meet the requirements through equivalent facilitation.
- B. Digital content: Alternate versions may be created whose number of pages varies from the original. Alternate versions may be provided for:
 - 1. A part of a web page, entire web pages, or an entire site;
 - 2. A part of an electronic document or an entire electronic document; or
 - 3. Any information conveyed in a digital format.
- C. ICT with closed functionality: Alternate versions are generally not available. Equally effective alternative access using a separate product may be acceptable. Alternate products must ensure the same access to all functionality and information.
- D. Installed software: Alternate versions must be compatible with the originally supported device(s) and operating system(s) or made available as a web application.

11.9 Equivalent Facilitation

Nothing in these rules prevents the use of designs, methods, or techniques as alternatives to those prescribed, provided that the alternative designs, methods, or techniques result in substantially equivalent or greater accessibility and usability of the ICT.

As an example, for instance, WCAG success criterion 3.3.4 requires that user submissions are automatically checked to prevent common errors in legal or financial transactions made through websites. If a public entity failed to do this (thus violating WCAG) but requires all users to separately verify important transactions in person and outside of its website prior to processing the transaction, it would meet this requirement through equivalent facilitation.

11.10 Undue Hardship, Undue Burden, Fundamental Alteration, or Direct Threat

- A. A public entity is not required to meet any of the compliance requirements in section 11.5 if doing so would result in an undue hardship, undue burden, fundamental alteration, or direct threat.

- B. For public-facing ICT, where a public entity has concluded that compliance with section 11.5 would result in a fundamental alteration in the nature of a service, program, or activity, or an undue burden, said decision must be made by the head of the public entity or their designee after considering all available resources, and the extent to which conformance would impose significant difficulty or expense. The decision must be accompanied by a written statement of the reasons for reaching that conclusion. Undue burden determinations may include, but are not limited to the following:
1. The resources of the program, service, or activity are not readily available, or the use of such resources would fundamentally alter the nature of the program, service, or activity;
 2. Contractual, legal, regulatory, or technical constraints prevent the modification of the program, service, or activity; or
 3. When the necessary auxiliary aids or services are not feasibly available.
- C. In determining whether compliance with section 11.5 would pose a direct threat to the health or safety of others, a public entity must make an individualized assessment, based on reasonable judgment that relies on the best available objective evidence, to ascertain:
1. the nature, duration, and severity of the risk;
 2. the probability that the potential injury will actually occur; and
 3. whether reasonable modifications of policies, practices, or procedures or the provision of auxiliary aids or services will mitigate the risk.

11.11 Materials Incorporated by Reference

- A. The following standards are hereby incorporated by reference into 8 CCR 1501-11 Rules Establishing Technology Accessibility Standards, pursuant to C.R.S. §24-4-103(12.5), and do not include any later amendments.
1. The World Wide Web Consortium (W3C) Web Content Accessibility Guidelines (WCAG) version 2.1 conformance levels A and AA, as published on Sep. 21, 2023, incorporated by reference into these rules is available at no cost in electronic form online at <https://www.w3.org/TR/WCAG21/>
 2. US Section 508 of the Rehabilitation Act of 1973, as issued on Jan. 18, 2017 and corrected on Jan. 22, 2018, incorporated by reference into these rules is available at no cost in electronic form online at <https://www.access-board.gov/ict/#chapter-4-hardware>
- B. The Colorado Governor's Office of Information Technology also maintains a copy of the policies, rules, and standards incorporated by reference into these rules, which is available from the office during regular business hours.

11.12 Severability

If any provision of these Rules Establishing Technology Accessibility Standards, 8 CCR 1501-11, is found to be invalid by a court of competent jurisdiction, the remaining provisions of these rules shall remain in full force and effect.

Editor's Notes

History

New rule eff. 04/14/2024.

Entire rule eff. 06/30/2025.